

IN THE UNITED STATES DISTRICT COURT  
FOR THE EASTERN DISTRICT OF NEW YORK

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STEPHEN SEALY,

PLAINTIFF

vs

PLAINTIFF'S FIRST  
AMENDED COMPLAINT  
[JURY TRIAL]

THE CITY OF NEW YORK, a  
municipal entity, NEW YORK  
CITY POLICE OFFICERS "JOHN  
DOES", NEW YORK CITY POLICE  
OFFICERS/DETECTIVES NELSON  
FIGUEROA, Shield # 7202,  
ROBIN STENECK, Shield # 882,  
JUSTIN SOLOMON previously  
identified as JOHN SOLOMON,  
Shield 21067 ANTHONY CHEATAM  
Shield # 516, PAUL BROWN,  
Shield # 4095, and JEAN  
GAILLARD, Shield # 16943, all  
of the identified and non  
identified persons in their  
individuals in their official  
capacities,

DEFENDANTS

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I. INTRODUCTION

1. The incident which gives rise to this litigation derives from the Plaintiff's custodial detention on June 23, 2009 and the Plaintiff's subsequent arrest on June 24, 2009 and the murder 2 homicide charge [125.25 of the New York State Penal Law] preferred against him associated therewith and arising out of the death of one Norman Walker.

2. The Plaintiff asserts and alleges that the Defendants, individually and collectively, acted recklessly and with deliberate indifference when, notwithstanding the identification of the Plaintiff by a third party as the alleged perpetrator of the murder of one Norman Walker, the Plaintiff was detained on June 23, 2009, arrested on June

24, 2009, prosecuted for the murder of said Norman Walker on June 17, 2009, held in custody for approximately seventeen months until the Plaintiff was acquitted, after a bench trial, on September 27, 2010 when the Plaintiff was, then, released from custody.

3. The Plaintiff asserts that the Defendants intentionally, recklessly, and with deliberate indifference, consciously avoided engaging in a reasonable investigation, without compromising their law enforcement mission, resulting, because of their conduct, in a probable cause lacking detention, arrest, and prosecution of the Plaintiff for a murder which he did not commit and in which he had absolutely no involvement.

4. The Plaintiff asserts that the circumstances as described hereinafter required a further reasonable investigation by the Defendants which would not have compromised their law enforcement mission and, if undertaken, would have avoided the unlawful custodial detention of the Plaintiff and the unlawful arrest [at the outset], the unlawful subsequent incarceration of the Plaintiff for approximately fifteen [15] months, and the unsuccessful unlawful prosecution of the totally innocent Plaintiff.

5. The Plaintiff asserts such because the identification, the sole evidence on which the Plaintiff's unlawful custodial detention and arrest and incarceration was predicated and the sole evidence on which the Plaintiff was prosecuted, was known to the Defendants -or reasonably should have been known to the Defendants, to be highly suspect and untrustworthy on which to form an objectively reasonable probable cause basis to believe the Plaintiff was the perpetrator of the murder of said Norman Walker.

6. In that respect, the Defendants knew or reasonably should have known that the identification of the Plaintiff by the witness identifier of the Plaintiff was inherently and otherwise untrustworthy because among other factors, at the time of the murder of Norman Walker, it is believed that the witness identifier of the Plaintiff was intoxicated and otherwise in shock and otherwise uncooperative and that the shooting incident took just a few seconds].

7. Furthermore and in conjunction therewith, the Defendants knew or should have known that the witness's identification of the Plaintiff as the perpetrator of the murder of Norman Walker was and continued to be inherently untrustworthy because the Defendants knew or reasonably should have known that there was no corroborative forensic or other circumstantial evidence to support the witness identification. Therefore and without any associated corroborative circumstantial or forensic evidence, there was no objectively reasonable probable cause basis to believe that the Plaintiff murdered Norman Walker.

8. This is so particularly since there was no evidence whatsoever to link the Plaintiff to Norman Walker on the evening/morning of the murder of Norman Walker or any at time prior to the murder; and/or there was no evidence whatsoever of any motive whatsoever for the Plaintiff to murder said Norman Walker.

9. This is an action in which the Plaintiff seeks relief for the violation of his rights as guaranteed under the laws and Constitution of the United States and, as well, under the laws and Constitution of the State of New York.

10. The Plaintiff seeks monetary damages and such other relief, including injunctive relief and declaratory relief [if appropriate], as may be in the interest of justice and as may be required to assure that the Plaintiff secures full and complete relief and justice for the violation of his rights.

## II. JURISDICTION

11. Jurisdiction of this Court is invoked pursuant to and under 28 U.S.C. Sections 1331 and 1343 and 1367 in conjunction with the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and the Fourth and Fourteenth Amendments to the United States Constitution and the laws and Constitution of the State of New York.

12. The facts which give rise to the State law claims, has a common nucleus with the facts which give rise to the federal law claims. The federal and the pendent State law claims arise out of the same transaction.

13. The Plaintiff also invokes the jurisdiction of this Court in conjunction with the Declaratory Judgment Act, 28 U.S.C. Sections 2201, et seq., this being an action in which the Plaintiff seeks, in addition to monetary damages, whatever other relief is needed to provide full and complete justice including, if appropriate, declaratory and injunctive relief.

14. This is an action in which the Plaintiff seeks relief for the violation of his rights as guaranteed under the laws and Constitution of the United States and, as well, as guaranteed under the laws and Constitution of the State of New York.

### III. THE PARTIES

15. The Plaintiff is an African American citizen and resident of the State of New York, the City of New York, and the County of Kings.

16. The Defendant City of New York is a municipal entity which was created under the authority of the laws and Constitution of the State of New York and which is authorized with, among other powers, the power to maintain a police department for the purpose of protecting the welfare of those who reside in the City of New York.

17. Defendants "John Does", Nelson Figueroa, Robin Steneck, Justin Solomon previously identified as John Solomon, Anthony Cheatham, Paul Brown, Jean Gaillard are New York City Police Officers/Detectives and agents and employees of the City of New York. Although their actions and conduct herein described were, individually and collectively, unlawful and wrongful and otherwise violative of the Plaintiff' rights as guaranteed under the laws and Constitution of the United States and of the State of New York, they were taken in and during the course of their duties and functions as New York City Police Officers and as agents and employees of the City of New York and incidental to the otherwise lawful performance of their duties and functions as New York City Police Officers and agents and employees of the City of New York.

### IV. ALLEGATIONS

18. The Plaintiff is Stephen Sealy.

19. The Plaintiff is an American citizen.
20. The Plaintiff's family came to the United States from Barbados, West Indies.
21. The Plaintiff is thirty three [33] years of age.
22. The Plaintiff was born in 1977.
23. The Plaintiff is a resident of the State of New York, the City of New York, and the County of Kings.
24. The Plaintiff resides in Brooklyn, New York.
25. The Plaintiff resided at his present address at the time he was taken into custody on June 23, 2009 by New York City Police Officers and at the time of his subsequent arrest at the 67<sup>th</sup> Precinct [where he had been detained and questioned while in detention and custody] on June 24, 2009 and, as well, as of the time of his acquittal of the homicide charge, which was preferred against him, on September 27, 2010 after a bench trial before the Honorable Gustin J. Reichbach, Justice, Supreme Court, State of New York, County of Kings, Criminal Term, Part # 27.
26. The Plaintiff lives by himself in a room at the address where he resides. The room is on the third floor, front. The building is owned by the Plaintiff's uncle. The building is located in the Bedford Stuyvesant neighborhood of Brooklyn, New York.
27. The Plaintiff is single.
28. The Plaintiff has three children.
29. The Plaintiff attended Andrew Jackson High School and graduated from said High School in 1994. Prior to attending Andrew Jackson High School, the Plaintiff attended the Allen Christian Middle School in Queens, New York. The Plaintiff attended a New York City public elementary schools in Brooklyn, New York and, then, in Queens, New York when he and his family moved from Brooklyn to Queens.
30. The Plaintiff attended Middle Georgia College in Cochran, Georgia for one and one half years.

31. The Plaintiff also attended New York City Technical College in Brooklyn, New York.

32. The Plaintiff grew up in Brooklyn and Queens, New York.

33. The Plaintiff's father is director of respiratory therapy at Coney Island Hospital.

34. The Plaintiff's mother is a school teacher who is employed by the New York City Department of Education and who teaches in a public school in the Borough of Queens.

35. The Plaintiff has a sister who is a school teacher and who is employed in a school district on Long Island.

36. The Plaintiff has a half sister who is employed as New York City Police Officer.

37. Prior to the Plaintiff's arrest on June 24, 2009, the Plaintiff had only one offense in his life: driving with a suspended license.

38. At the time of the Plaintiff's arrest, the Plaintiff was employed by the New York City Medical Examiner's Office as a Clerical Associate 3.

39. The Plaintiff had been employed for approximately two years by the New York City Medical Examiner's Office.

40. In his position in the Office of the New York City Medical Examiner, the Plaintiff inputted the police invoices from the New York City Police Department into the data system of the New York City Medical Examiner's Office, sorted case files, and transported evidence.

41. The Plaintiff worked in the New York City Medical Examiner's Office at the Bellevue Hospital Medical complex.

42. The Plaintiff was a provisional civil service employee in the New York City Medical Examiner's Office having taken a written examination and having scored sufficiently on the written examination to be employed in the provisional capacity with the anticipation that he would secure a permanent status civil service position.

43. As a consequence of the Plaintiff's arrest and custodial incarceration as described hereinafter, the Plaintiff was forced to resign his position as he was held without bail pending a trial which, after completed, resulted in the Plaintiff's acquittal on September 27, 2010.

44. Prior to being employed by the New York City Medical Examiner's Office, the Plaintiff was employed as a Clerical Associate 2 at Coney Island Hospital. That, too, was a provisional civil service position. The Plaintiff held his position at Coney Island Hospital for approximately three years.

45. The Plaintiff left his employment at Coney Island Hospital as part of up-ward mobility advancement in his employment status from Associate level 2 to Associate level 3.

46. The incident which gives rise to this litigation derives from the Plaintiff's custodial detention on June 23, 2009 and the Plaintiff's subsequent arrest on June 24, 2009 and the murder 2 homicide charge [125.25 of the New York State Penal Law] preferred against him associated therewith and arising out of the death of one Norman Walker.

47. The Plaintiff was arrested on June 24, 2009, after having been taken into custody at his residence on Macon Street on June 23, 2009, and charged with the murder of one Norman Walker which allegedly took place on June 17, 2009.

48. The Plaintiff was detained in custody and, when presented in Court at an arraignment, was detained and held in custody without bail.

49. While in custody and during appearances in the Court proceedings that ensued after his arrest, the Plaintiff was offered pleas which he turned down. Such included a possible plea which the Court discussed with the Plaintiff on the record on September 14, 2010 [prior to the commencement of the Huntley hearing] in which New York State Supreme Court Justice Gustin L. Reichbach inquired whether the Plaintiff would, if such could be possible [which it could not], entertain a plea which, in the end, would result in his release within a very short period of

time given the approximately fifteen months in which the Plaintiff had already been incarcerated.

50. The Plaintiff expressed to the Court that, if such proposal could take place [which it could not], nevertheless, he would not plead guilty to any charge because he was innocent and not guilty of any wrong doing including the homicide of the deceased, Norman Walker, for which he was then standing trial.

51. Ultimately, the Plaintiff was tried on the murder 2 charge preferred against him, for the alleged murder of Norman Walker, and he was acquitted by the Court, without a jury, on September 27, 2010.

52. The trial commenced on September 20, 2010 following Huntley and Payton hearings which were held, respectively, on September 14 and September 16, 2010.

53. The trial was a bench trial which was held before the Honorable Gustin L. Reichback, Justice of the Supreme Court of the State of New York, County of Kings.

54. Before the trial commenced, the Court undertook, on the record and pursuant to the Court's obligations under the law, to make sure that the Plaintiff was knowingly and voluntarily waiving his constitutionally guaranteed right to a jury trial.

55. The Plaintiff made clear that he was knowingly and voluntarily and without coercion waiving his constitutional right to a jury trial.

56. The People's attorney, Assistant Kings County District Attorney Thomas C. Ridge, and the Plaintiff's criminal defense attorney, Jesse Berman, presented their respective openings on September 20, 2010.

57. Thereafter, the People presented its case. Mr. Berman cross examined those witnesses placed on the witness stand by the People. The People called Christopher Scott, Quianna Reeves, and New York City Police Officers Justin Solomon, Robin Steneck, and Nelson Figueroa.

58. After the People rested, the Plaintiff elected to take the stand and testify on his own behalf. The Court made sure that the Plaintiff was aware that he had a right



not to take the stand and that such would not, as a matter of law, be held against him if he elected not to take the stand. The Plaintiff also called New York City Police Officer Matthew Walker.

59. On September 23, 2010 the presentation of the evidence concluded and the respective attorneys presented summations to the Court. The People's attorney could not identify any motive as to why the Plaintiff would have shot and killed Norman Walker, an individual whom the Plaintiff did not know at all or otherwise engage with on the date in question or at any other time in his life.

60. Thereafter on September 27, 2010 and after due deliberation, the Court announced and entered in the record its verdict of acquittal of the Plaintiff concluding that the People had failed to carry its burden to prove beyond a reasonable doubt that the Plaintiff was guilty of any charge; and, associated therewith, the Court offered, again on the record, an explanation for its verdict.

61. As of the date of the Plaintiff's arrest, the Plaintiff wore his hair in a style known as "dreads". The Plaintiff still wears his hair in the "dreads" style.

62. The Plaintiff has never worn glasses.

63. The Plaintiff has never owned a gun.

64. The Plaintiff has never fired a gun.

65. The Plaintiff has never had any weapons training.

66. The Plaintiff has no idea how to load or fire an automatic handgun.

67. The Plaintiff does not own a car.

68. As of the date of the Plaintiff's arrest, the Plaintiff worked in the Office of the Medical Examiner of the City of New York Monday through Friday, nine o'clock in the morning to five o'clock in the afternoon.

69. On June 16, 2009 and on June 17, 2009, the Plaintiff went to work. The Plaintiff worked the balance of that week. In other words, the Plaintiff worked the week of

June 15, 2009 [Monday through Friday] including Wednesday the 17<sup>th</sup>.

70. The following week, the Plaintiff worked on Monday, June 22, 2009 and on Tuesday, June 23, 2009.

71. The Plaintiff was arrested at his residence on the evening of June 23, 2009. While the Plaintiff went to the 67<sup>th</sup> precinct on the evening of June 23, 2009, he did so under coercion and not voluntarily even when asked to come to the Precinct by the New York City Police Officers who came to the Plaintiff's residence. In other words, the Plaintiff never believed that he had any option not to go to the Precinct and the New York City Police Officers, while asking him to accompany them, made it clear by their words and actions that he had no choice.

72. The Plaintiff was arrested, without a warrant, for the murder of one Norman Walker. Furthermore, no warrant was ever obtained by the Police to search the Plaintiff's residence or to search for any specific evidence associated with the murder of Norman Walker [for example, the clothes which Christopher Scott asserted that the shooter wore on the night in question: a long sleeve red button down shirt and a black jacket; and for another example a nine millimeter automatic which Christopher Scott asserted the shooter fired at Norman Walker].

73. The Plaintiff did not know Norman Walker and does not know Norman Walker.

74. Moreover, the Plaintiff does not know one Christopher Scott and has never known one Christopher Scott.

75. The Plaintiff does know one Quianna Reeves and has known her, socially, for approximately ten years or thereabouts.

76. The Plaintiff worked at his job in the New York City Medical Examiner's Office on June 16, 2009.

77. The Plaintiff got home at or about 7:30 P.M.

78. The Plaintiff was scheduled to work on June 17, 2009 in the New York City Medical Examiner's Office commencing at his normal time of 9:00 A.M.

79. About 12:00 A.M. or 12:30 A.M. on June 17, 2009, the Plaintiff received a telephone call from Quianna Reeves.

80. The Plaintiff was lying down at the time.

81. Quianna Reeves informed the Plaintiff, in substance, that there was going to be a "round robin" that night and she invited the Plaintiff to come out and party.

82. Quianna Reeves informed the Plaintiff to come to a bar known as Caribbean Paradise which is sometimes known as Caribbean American or Caribbean City.

83. Caribbean Paradise is located on Nostrand Avenue, between Tilden and Beverly, in the Flatbush section of Brooklyn, New York. Such is about a ten or fifteen minute taxi cab ride from the Plaintiff's residence.

84. A "round robin" is an event when and where the bar owners in that Flatbush neighborhood of Brooklyn, New York designate one bar as a location where all will go to buy drinks and party.

85. The Plaintiff, per the invitation of his friend Quianna Reeves, went to the Caribbean Paradise bar where the round robin was on going. The Plaintiff, who does not own a car, took a cab to the location. The Plaintiff went to the Caribbean Paradise by himself.

86. The Caribbean Paradise bar had an indoor area and an outdoor area in the back where patrons ate and drank.

87. The Plaintiff arrived at the Caribbean Paradise bar at or about 1:30 A.M. on June 17, 2009. There were approximately thirty or so persons in the bar.

88. The Plaintiff was wearing a polo shirt otherwise known as a short sleeved t-shirt. The weather was warm.

89. The Plaintiff was not wearing a red buttoned down shirt or a red shirt of any kind

90. The Plaintiff did not own a red button down shirt or any red shirt of any kind.

91. The Plaintiff was not wearing a jacket of any sort over his t-shirt.

92. The Plaintiff is right handed.

93. The Plaintiff has tattoos on his right arm and the Plaintiff had those tattoos on his right arm on June 17, 2009. The tattoos are distinct and sufficiently large to be noticed, especially when the Plaintiff was wearing a t-shirt or other short sleeve shirt.

94. The Plaintiff has a dog tattoo holding a bag of money and a smoking gun which tattoo is about six inches long on his inner right forearm, below the elbow; and a teddy bear tattoo on his upper right arm above the elbow.

95. The t-shirt which the Plaintiff was wearing on June 17, 2009 did not come down below the elbow and did not cover the dog tattoo on the lower inner forearm [as described].

96. The Plaintiff remained at the Caribbean Paradise establishment for about two hours.

97. Because the Plaintiff had to go to work on the morning of the 17<sup>th</sup> and to be at work at 9:00 A.M., the Plaintiff drank very little at the Caribbean Paradise.

98. The Plaintiff had one beer.

99. The Plaintiff "baby sat" the beer holding it in his hand so that, if asked whether he wanted another beer, he would say that he had one and he could decline a further beer.

100. The Plaintiff, not knowing either Christopher Scott or Norman Walker, does not know whether either Christopher Scott or Norman Walker were at the Caribbean Paradise location.

101. Nothing unusual occurred at the Caribbean Paradise while the Plaintiff was there and before he left the establishment.

102. The Plaintiff left the Caribbean Paradise bar somewhere between 3:30 A.M. and 4:00 A.M. because the bar was closing.

103. The Plaintiff left with Quianna Reeves and her friends, Irma, and Denise, and, together, they went to another neighborhood establishment known as Julian's which is located on Rogers between Beverly and Tilden in Flatbush neighborhood of Brooklyn, New York [approximately one and one half blocks from Caribbean Paradise—around the corner]. They walked to Julian's bar.

104. The Plaintiff arrived at Julian's somewhere around 4:00 A.M. or thereabouts.

105. The Plaintiff remained at Julian's for about one half hour.

106. While the Plaintiff was at Julian's bar there were perhaps ten to twenty people at the location, most of whom were males and a number of whom were wearing their hair in a "dreads" hair style.

107. The Plaintiff had one beer at Julian's.

108. The Plaintiff declined to drink any hard liquor although he was offered some vodka by Quianna Reeves who was drinking a lot and was intoxicated.

109. The Plaintiff declined the vodka drink because the Plaintiff does not drink hard liquor and because the Plaintiff did not want to drink since he was going to leave in order to go home and go to work on that morning.

110. While in Julian's the Plaintiff stayed by a stool off to the corner of the bar right next to the door.

111. The dance floor in Julian's bar was not well lit but otherwise the Julian's bar was lit including the location where the Plaintiff stood while he was in Julian's.

112. The Plaintiff left Julian's, alone, at or about 4:30 or 4:40 A.M, approximately one half hour after arriving at Julian's bar.

113. Quianna Reeves was not ready to leave when the Plaintiff decided to leave in order to go to his residence, get some sleep, and get up and go to work at his job in the New York City Medical Examiner's office.

114. At the time the Plaintiff left Julian's, it appeared to him that Quianna Reeves was intoxicated.

115. The Plaintiff was not intoxicated.

116. While the Plaintiff was in Julian's he did not observe any incident, dispute, or argument or anything of that sort and the Plaintiff did not have any dispute, argument or any other kind incident.

117. Moreover and because the Plaintiff does not know Norman Walker or Christopher Scott, the Plaintiff has no idea whatsoever whether the individuals were in Julian's bar.

118. No one said anything unkind or insulting to the Plaintiff and the Plaintiff did not hear any such comments while he was in Julian's. Moreover, the Plaintiff did not make any insulting comments or otherwise engage in a starring incident.

119. The Plaintiff was not offended in any manner or fashion while he was in Julian's bar.

120. Since the Plaintiff did not own a car and had gone to the Caribbean Paradise establishment earlier in the evening by cab and then had walked to Julian's bar with Quianna Reeves and her friends Denise and Irma and since the Plaintiff left alone and with no other person, the Plaintiff left Julian's bar and walked down Rogers to go to Church Avenue in order to buy some cigarettes and, then, to hail a gypsy cab in order to travel to his residence on Macon Street.

121. The Plaintiff never entered into an Audi or any vehicle at the location of Julian's bar or otherwise [save for the gypsy cab which he eventually obtained on Church Avenue]; and there was no vehicle of any kind waiting for the Plaintiff when he left Julian's bar.

122. The Plaintiff eventually obtained a cab on Church Street, perhaps five to ten minutes or thereabouts after he left the Julian's bar and walked to Church Avenue to get cigarettes and to hail a gypsy cab.

123. When the Plaintiff arrived at his residence, it was between 4:30 A.M. and 5:00 A.M. The Plaintiff took a shower so that he would not have to do so when he woke to go to work since it was so late already at that time. Therefore, he could sleep a little extra before arising to go to work. The Plaintiff was in the shower only briefly.

124. After his shower, the Plaintiff received a cell telephone call from Quianna Reeves.

125. The Plaintiff and Quianna Reeves would regularly speak on the telephone when they spent time together and when they left separately to go to their homes. They did so to check that each was okay.

126. When the Plaintiff spoke with Quianna Reeves, the Plaintiff's impression was that she was excited and that she was having a conversation with others; and that she was in a cab. The Plaintiff could not clearly hear and understand what Quianna Reeves was saying. The Plaintiff believed that Quianna Reeves was intoxicated as she when the Plaintiff had left the Julian's bar.

127. The Plaintiff told Quianna Reeves to call him when she arrived home.

128. The Plaintiff received another call from Quianna Reeves a short time thereafter.

129. The Plaintiff's impression was that Quianna Reeves was still in what he would describe as an up-set tone and state of mind and still intoxicated. They had a brief exchange in which Quianna Reeves indicated that she was then home and she started speaking further but the Plaintiff informed her that he was going to sleep because he had to go to work and that they would speak later. The Plaintiff then ended the call.

130. The Plaintiff never shot anyone on the morning of June 17, 2009.

131. The Plaintiff did not have a gun or any other weapon on the morning of June 17, 2009.

132. The Plaintiff did not know either Norman Walker or Christopher Scott.

133. The Plaintiff did not have any reason on that night or any other night to shoot Norman Walker.

134. The Plaintiff did not shoot Norman Walker on June 17, 2009.

135. As far as the Plaintiff recalls and remembers, the only women patrons in Julian's bar on the morning of June 17, 2009 when the Plaintiff was inside of the Julian's bar were Quianna Reeves and her two friends, Erma and Denise. There were approximately ten others in the bar, all of whom were males and some of whom wore their hair in dreads.

136. On June 17, 2009 Norman Walker was shot and killed outside of the Julian's bar on Rogers Avenue.

137. It is believed that Norman Walker was drunk when he was shot by an unknown assailant outside of the Julian's bar in the vicinity of Julian's bar.

138. It is believed, too, that Christopher Scott, who left Julian's bar with Norman Walker, was intoxicated.

139. It is believed that Christopher Scott and Norman Walker left Julian's bar some time after the Plaintiff left the bar by himself, perhaps five to ten minutes after the Plaintiff left the bar and when the Plaintiff had left the vicinity of Julian's bar, on foot, and was in the vicinity of Church where was buying cigarettes and/or securing a cab to go home and/or in the cab on his way home.

140. The Plaintiff was not present when any individual shot and killed Norman Walker.

141. The Plaintiff did not shoot and kill Norman Walker.

142. The Plaintiff has no idea, now or then, who Norman Walker is or what Norman Walker looked like on June 17, 2009.

143. The Plaintiff believes that, some time earlier in that evening, Norman Walker was in a bar in Manhattan where he got into an argument with someone.



144. It is believed, too, that Norman Walker was known to get drunk and to get into altercations [verbal and/or otherwise] when he drank

145. Christopher Scott asserts that he and his friend Norman Walker were in Julian's bar on the morning of June 17, 2009.

146. Christopher Scott has asserted that he and Norman Walker had been drinking and that Norman Walker was drunk when they left the bar and, according to Christopher Scott, a male, with dreads, exited a gray Audi and fired five shots into Norman Walker with a nine millimeter automatic handgun and, then, re-entered the vehicle and left the scene [with another individual driving the Audi].

147. The Plaintiff was not in a gray or silver Audi on the morning of June 17, 2009 and did not exit the vehicle and shoot Norman Walker.

148. The Plaintiff has never been in a gray or silver Audi.

149. The Plaintiff never possessed any gun on the morning of June 17, 2009 and did not shoot Norman Walker.

150. New York City Police Officers arrived at the scene. The crime scene was not adequately protected and preserved.

151. The victim, Norman Walker, was removed from the scene and taken to Kings County Hospital where he was pronounced dead.

152. Christopher Scott was not cooperative with the New York City Police Officers who arrived at the scene and sought information from him.

153. It is believed that Christopher Scott was intoxicated at the time he left Julian's bar with Norman Walker.

154. According to Christopher Scott the shooting incident, in which only Norman Walker was shot and killed, took only a matter of seconds; and Christopher Scott was, according to him, shocked.

155. Although Christopher Scott was standing next to Norman Walker, he was not shot by the perpetrator of the Walker shooting which belies the Walker identification that the shooter was someone with whom Christopher Scott had just spoken with inside of the Julian's bar and would therefore have been able to identify the shooter thereby leaving the shooter to want to shoot Christopher Scott, as well [Mr. Scott was not shot or shot at].

156. The New York City Police Officers who came to the location superficially interviewed persons in Julian's bar and otherwise.

157. Quianna Reeves was drunk and could provide little information and certainly no information whatsoever about the shooting.

158. Quianna Reeves did provide information that Stephen Sealy was in Julian's bar and was known as "Steve the fish".

159. It is believed that the officers never asked Quianna Reeves whether she had a telephone number at which said "Steve the fish" could be contacted.

160. Christopher Scott did indicate that an individual with dreads and wearing a red button down shirt and a black jacket was the individual who got out of the passenger side of what he recalled was a gray Audi, fired five shots into Norman Walker with a nine millimeter automatic handgun, and then re-entered the Audi and drove off with a driver of the Audi vehicle.

161. The New York City Police Officers who were engaged in the process of investigating the Norman Walker shooting did not take finger prints off of spent cell casing, did not take blood samples of blood which was on the street at the location where the shooting took place,, and did not otherwise undertake to endeavor to locate the Audi vehicle.

162. Having identified "Steve the fish", the New York City Police Officers involved in the post Walker shooting investigation located the Face Book of the Plaintiff through the name "Steve the fish".

163. Thereafter and with no further investigation of any consequence and without doing any forensic

investigation and/or otherwise defining any motive for a shooting by the Plaintiff of Norman Walker and/or any involvement between Norman Walker and the Plaintiff on the morning in question or even any knowledge that the Plaintiff and Norman Walker knew each other at all, the New York City Police Officers went to the Plaintiff's residence on June 23, 2009.

164. They went without any warrant, arrest or otherwise, including a warrant for the search of the Plaintiff's residence.

165. In the interim period between the date of the shooting and June 23, 2009, the Officers did no investigation into locating an Audi vehicle or undertaking to explore a prior incident by Mr. Walker with someone at a bar in Manhattan earlier in the evening of the shooting.

166. The Plaintiff was detained and taken into custody and transported to the 67<sup>th</sup> Precinct.

167. When the Plaintiff was taken from his residence on June 23, 2009, he was wearing a short sleeve shirt as it was, on that evening, warm like it was on the evening and the early morning of the shooting of Norman Walker when the Plaintiff was then, as well, wearing a t-shirt with his exposed distinguishing and visible tattoos.

168. In effect, the Plaintiff was questioned and the Plaintiff had no idea whatsoever what the New York City Police Officers were talking about when, in substance, they asked him about the shooting.

169. The Plaintiff told the New York City Police exactly what he did that night [as described hereinabove].

170. The Plaintiff informed the New York City Police Officers that he did not know a Norman Walker and that he did not shoot a Norman Walker or anyone else ever or on the morning of June 17, 2009.

171. The Plaintiff was placed in a lineup at the 67<sup>th</sup> Precinct.

172. An individual identified the Plaintiff as being in the Julian's bar on the morning in question but did not

otherwise identify the Plaintiff regarding the shooting of Norman Walker.

173. That the Plaintiff was in the Julian's bar on the morning of the shooting is not contested as were several other males, many of whom wore their hair in dreads.

174. The Plaintiff does not deny and has never denied that he was in the Julian's bar on the morning in question. So, accordingly, that lineup identification by that individual is of no consequence and the Defendants knew or should have known such.

175. Another individual, supposedly Christopher Scott, identified the Plaintiff as the shooter of Norman Walker.

176. Christopher Scott had previously been shown a photograph of the Plaintiff [prior to the lineup identification], the result of the Defendants having learned that the Plaintiff was known as "Steve the fish" and having located a Face Book photo of the Plaintiff which Face Book photo of the Plaintiff [with his arm around a woman].

177. The photograph of the Plaintiff as described was part of a photo array put together by the Defendants and shown to Christopher Scott.

178. Subsequently, a lineup was put together at the time the Plaintiff was in the custody of the Defendants at the 67<sup>th</sup> Precinct and the Plaintiff was identified by Christopher Scott.

179. It is believed that the lineup identification was suggestive and problematic.

180. The Defendants did very little if any post shooting thorough interviews of individuals in the Julian's bar and/or to identify all of the individuals who were in the Julian's bar that night.

181. Moreover, the Defendants did not investigation into the possibility of a drive by shooting and/or a shooting related to the prior altercation which it is believed that Norman Walker had earlier that evening in another bar -in Manhattan, where and when he had been drinking.

182. In other words solely and only on the one witness Christopher Scott identification who himself was, it is believed, intoxicated at the time of the shooting, who was uncooperative initially at the time of the shooting when interviewed by Defendants, who was self described as shocked, who himself was not shot by an individual who supposedly knew him from an encounter in the Julian's bar because supposedly the Plaintiff had a verbal exchange and altercation with Christopher Scott and/or Norman Walker, and with no forensic investigation and no forensic corroboration of the Plaintiff's involvement in the shooting, and without motive or without any other circumstantial corroboration, the Plaintiff was arrested by the Defendants on June 24, 2009 for the murder of Norman Walker.

183. Notwithstanding the absence of any meaningful investigation, the known problems with and the lack of trustworthiness of the eye witness identification, the fact that Christopher Scott had been drinking on the night in question, and the absence of the presence of any motive for a shooting by the Plaintiff of Norman Walker, the Defendant New York City Police Department Officers/Detectives engaged in this matter and working together and in conjunction with each other in this matter arrested the Plaintiff for the murder of Norman Walker resulting in the preferral of murder 2 charge against the Plaintiff and the prosecution of the Plaintiff for the murder of Norman Walker.

184. There was absolutely no need to arrest the Plaintiff at the time when he was arrested and he could have -and should have, been released pending further investigation which, if done, would not have compromised any law enforcement mission and would, potentially, have allowed for further forensic analysis and/or other investigation into the murder of Norman Walker.

185. The Defendants knew that the one witness identification is an intrinsically suspect and untrustworthy evidence, especially under the circumstances of this matter [as described above].

186. There was no objectively reasonable probable cause basis for the afore-described custodial arrest of the Plaintiff or for the preferral of any charge against the Plaintiff or for the prosecution of the Plaintiff.

187. The arrest of the Plaintiff was made out of convenience and as a consequence of the reckless and deliberately indifferent investigation of Defendant New York City Police Officers/Detectives associated with the matter as described and working together and in conjunction and concert with each other.

188. The Plaintiff was unlawfully arrested since there was absolutely no basis for his custodial arrest given that there was insufficient trustworthy evidence on which to arrest the Plaintiff since the only evidence for the arrest of the Plaintiff was an untrustworthy single witness identification of the Plaintiff [as described] with no corroborating evidence of any kind and no trustworthy motive whatsoever to even link the Plaintiff to Norman Walker on that evening or prior to that evening and absolutely no motive to link him to a murder.

189. The Plaintiff was subjected to a false arrest and an unlawful custodial detention and imprisonment and he was subjected to malicious prosecution and malicious abuse of criminal process in as much as the arrest and use of the criminal process was simply for the collateral purpose and convenience of the New York City Police Officers to close out an investigation into the shooting death of Norman Walker.

190. But for the Defendants intentional and/or deliberate and reckless disregard of the facts and/or their failure to undertake further minimal inquiries and investigation, which would have placed no one at risk and would not have otherwise interfered with the law enforcement mission and in fact would have advanced the law enforcement mission, the Plaintiff would not have been subjected to the unreasonable, probable cause lacking false arrest and imprisonment and, associated therewith, the fifteen month custodial detention, the malicious prosecution, and the malicious abuse of process, the prosecution of which eventually resulted in an acquittal, the latter of which acquittal, based on the questionable identification and lack of motive and other problematic aspects to the police conduct, was from the beginning reasonably and objectively self evident.

191. While the actions and conduct of the New York City Police Officers were unlawful they were taken in the course

of their duties and functions and incidental to the otherwise lawful performance of those duties and functions as New York City Police Officers and as agents and employees of the City of New York. The Officers involved in the afore-described reckless and deliberately indifferent investigation, arrest, and prosecution include, among others, Defendant Officers/Detectives Nelson Figueroa, Robin Steneck, Justin Solomon, Anthony Cheatham, Paul Brown, and Jean Gaillard.

192. The actions and conduct herein described were propelled by the crime offense enforcement initiatives of the City of New York which is grounded in the philosophy of the "ends justifies the means", the ends in this case being the closure of an investigation into a shooting death in order to achieve a positive statistical outcome rather than an open unclosed case outcome which would have been the case but for the arrest and preferral of charges against the Plaintiff.

193. Such crime offense enforcement initiative propels officers to make stops, detentions, and custodial arrests where there is no basis for the initial stop and detention and no probable cause for any arrest and, by such, to generate arrest statistics and to otherwise make examples of individuals in the hope that such would depress crime offenses.

194. The policy and practices have a disproportionate impact on African Americans and others who, because of their race as persons of color, are, often times and for no other reason but the race factor, singled out for stops, detentions and arrests and derogatory treatment, based on racial and color considerations and bias, and discriminatory treatment based on racial factors bias.

195. As described above, the Plaintiff was falsely arrested and maliciously prosecuted and subjected to malicious abuse of criminal process and subjected to racially discriminatory conduct.

196. The actions, conduct, policies and practices and customs herein described violated the Plaintiff's rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

197. The actions, conduct, policies and practices, and customs violated the Plaintiff's rights under the laws and Constitution of the State of New York including false arrest and imprisonment, malicious prosecution, and malicious abuse of criminal process, and racial discrimination.

198. The actions, conduct, policies and practices and customs were negligent and otherwise the proximate cause of the injuries and damages suffered by the Plaintiff.

199. The Plaintiff suffered injuries and damages including loss of liberty, fear, anxiety, mental distress, emotional anguish, and psychological trauma, and embarrassment, and humiliation, and physical pain and suffering.

200. The Plaintiff also suffered lost wages and at present continued lost wages even though, up to the point in time when he was arrested and detained without bail and forced to resign from his position, he had been regularly and fully employed over the course of many years.

201. The Plaintiff obtained employment as an overnight stock clerk at the Sephora retail established located at Columbus Circle, New York City. The Plaintiff obtained his employment at or about the end of November, 2010.

202. The Plaintiff has no other adequate remedy at law to obtain redress for what he claims to have been the violation of his rights other than for the instant litigation.

## V. CAUSES OF ACTION

### A. FIRST CAUSE OF ACTION

203. The Plaintiff reiterates Paragraph #'s 1 through 202 and incorporates such by reference herein.

204. Plaintiff Stephen Sealy was falsely arrested and falsely imprisoned and detained in violation of his rights as guaranteed under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

205. Plaintiff suffered injuries and damages.



B. SECOND CAUSE OF ACTION

206. The Plaintiff reiterates Paragraph #'s 1 through 205 and incorporates such by reference herein.

207. Plaintiff was unlawfully and falsely arrested and falsely imprisoned in violation of his rights as guaranteed under the laws and Constitution of the State of New York.

208. Plaintiff suffered injuries and damages.

C. THIRD CAUSE OF ACTION

208. The Plaintiff reiterates Paragraph #'s 1 through 207 and incorporates such by reference herein.

209. Plaintiff was subjected to malicious prosecution in violation of his rights as guaranteed under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

210. Plaintiff suffered injuries and damages.

D. FOURTH CAUSE OF ACTION

211. The Plaintiff reiterates Paragraph #'s 1 through 210 and incorporates such by reference herein.

212. Plaintiff was subjected to malicious prosecution in violation of the laws and Constitution of the State of New York.

213. Plaintiff suffered injuries and damages.

E. FIFTH CAUSE OF ACTION

214. The Plaintiff reiterates Paragraph #'s 1 through 213 and incorporates such by reference herein.

215. The Defendants acted in a reckless and deliberate indifferent manner and fashion in order to achieve the collateral purpose of closing out a case simply for the purposes of achieving a statistical closeout as "solved" but without the requisite evidence to justify the arrest and prosecution of the Plaintiff.

216. In other words, the Defendants engaged in a reckless and deliberately indifferent investigation for their own convenience and in order to achieve their own end rather than to achieve the legitimate law enforcement mission of solving the murder of the victim and identifying the perpetrator of the crime.

217. Plaintiff was subjected to malicious abuse of criminal process in violation of the Fourteenth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

218. Plaintiff suffered injuries and damages.

#### F. SIXTH CAUSE OF ACTION

219. The Plaintiff reiterates Paragraph #'s 1 through 218 and incorporates such by reference herein.

220. Plaintiff was subjected to malicious abuse of criminal abuse process in violation of his rights as guaranteed under the laws and Constitution of the State of New York.

221. Plaintiff suffered injuries and damages.

#### G. SEVENTH CAUSE OF ACTION

222. The Plaintiff reiterates Paragraph #'s 1 through 221 and incorporates such by reference herein.

223. The Plaintiff suffered interference with his familial relationships in violation of his rights as guaranteed under the Fourteenth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

224. The Plaintiff suffered injuries and damages.

#### H. EIGHTH CAUSE OF ACTION

225. The Plaintiff reiterates Paragraph #'s 1 through 224 and incorporates such by reference herein.

226. The Plaintiff suffered interference with his familial relationships in violation of his rights as

guaranteed under the laws and Constitution of the State of New York.

227. The Plaintiff suffered injuries and damages.

#### I. NINTH CAUSE OF ACTION

228. The Plaintiff reiterates Paragraph #'s 1 through 227 and incorporates such by reference herein.

229. Plaintiff was subjected to racially discriminatory treatment in violation of his rights as guaranteed under the Fourteenth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

230. Plaintiff suffered injuries and damages.

#### J. TENTH CAUSE OF ACTION

231. The Plaintiff reiterates Paragraph #'s 1 through 230 and incorporates such by reference herein.

232. Plaintiff was subjected to racially discriminatory treatment in violation of his rights as guaranteed under the laws and Constitution of the State of New York.

233. Plaintiff suffered injuries and damages.

#### K. ELEVENTH CAUSE OF ACTION

234. The Plaintiff reiterates Paragraph #'s 1 through 233 and incorporates such by reference herein.

235. The Defendant City of New York has recklessly and with deliberate indifference failed to provide adequate training and standards and policies and practices for its police officers where, in the context of an investigation, the only evidence they have in solving the crime is the highly intrinsic and otherwise circumstantially suspect and untrustworthy evidence of an identification provided by one eye witness, without corroborating forensic or other trustworthy circumstantial trustworthy evidence.

236. Such thus leads to recklessly and deliberate indifferent investigations which consciously avoids testing evidence and gathering other evidence, without compromising the law enforcement mission, and leading to the arrest and prosecution of individuals who are innocent of any

wrongdoing and the crime or crimes of which the individual is accused, arrested, and prosecuted.

237. The policies, practices and customs herein described propelled the actions and conduct herein. Those policies, practices, and customs violated the Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

238. The Plaintiff suffered injuries and damages.

#### L. TWELFTH CAUSE OF ACTION

239. The Plaintiff reiterates Paragraph #'s 1 through 238 and incorporates such by reference herein.

240. The actions and conduct and policies, practices and customs herein were negligent and otherwise violative of the Plaintiff's rights under the laws and Constitution of the State of New York.

241. The Plaintiff suffered injuries and damages.

#### M. THIRTEENTH CAUSE OF ACTION

242. The Plaintiff reiterates Paragraph #'s 1 through 241 and incorporates such by reference herein.

243. Pursuant to and under pendent State law and pendent State claim jurisdiction and independent of the federally based claim against the Defendant City of New York, the Defendant City of New York is responsible, under State law claims, for the actions and conduct of its Defendant Officers, as employees and agents of the City of New York, pursuant to the doctrine of respondeat superior.

244. The Plaintiff suffered injuries and damages.

#### N. FOURTEENTH CAUSE OF ACTION

245. The Plaintiff reiterates Paragraph #'s 1 through 244 and incorporates such by reference herein.

246. The Defendant City of New York, if the City represents its Officers, uniformly and as a matter of

policy and practice indemnifies its Officers for any award of both punitive damages and compensatory damages.

247. The named and unnamed individual Defendants are employees and agents of the City of New York and their conduct, as described, was taken in the course of their duties and functions as New York City Police Officers and, in their capacities as such, as agents and employees of the City of New York.

248. Their actions and conduct, while unlawful and unconstitutional, nonetheless were actions and conduct taken to the otherwise lawful performance of their duties and functions as agents and employees of the City of New York.

249. The Plaintiff is entitled to recover against the City of New York for the conduct of its named and unnamed Officers under the federal claim jurisdiction pursuant to the doctrine of respondeat superior.

250. The Plaintiff suffered injuries and damages.

WHEREFORE and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and:

- [a] Invoke pendent party and pendent claim jurisdiction.
- [b] Award appropriate compensatory and punitive damages.
- [c] Award appropriate declaratory and injunctive relief.
- [d] Empanel a jury.
- [e] Award attorney's fees and costs.
- [f] Award such other and further relief as the Court deems to be in the interest of justice.

DATED: New York, New York  
April 7, 2011

Respectfully submitted,

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